

Court No. - 3

Case :- WRIT - C No. - 35445 of 2021

Petitioner :- Sarfaraj Husain

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Girja Shanker Sen, Krishna Dutt Awasthi

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Brij Raj Singh, J.

Heard Sri Krishna Dutt Awasthi, learned counsel for petitioner, Sri Shivam Yadav, learned counsel for Distribution Corporation and learned Standing Counsel for the State.

Upon hearing of the parties it transpires the petitioner had earlier approached this Court by way of Writ C No. 24138 of 2017 which was disposed of by the following term :

"Heard learned counsel for the petitioner.

Petitioner has approached this Court challenging the provisional assessment notice issued by respondents on account of the alleged theft of electricity.

Petitioner has a remedy of filing objection to the provisional assessment notice under Section 126 (3) of the Electricity Act, 2003 read with clause 6.8 (b) of the Electricity Supply Code, 2005.

In view of above, the writ petition stands disposed of with the liberty to the petitioner to file objection to the provisional assessment bill before the appropriate authority."

Further, the petitioner contend that in compliance of the aforesaid order, the petitioner filed written objection on 27.7.2017. He also sent reminder letters dated 1.2.2018, 4.9.2019 and 24.3.2021. In that background it has been stated, in the writ petition that the representation/objection filed by the petitioner has remained pending before respondent No. 3.

On the other hand, learned counsel for distribution corporation states owing to certain restructuring of the Corporation and carving out of new division, the representation earlier made by the petitioner has remained pending. He therefore, suggests that the petitioner may be required to file a fresh representation within a period of two weeks before the respondent No. 3.

In such circumstances, no useful purpose may be served in keeping the petition pending or calling for a counter affidavit.

Accordingly, present writ petition is **disposed of** with the following directions:-

(i) subject to the petitioner filing a fresh representation/objection before respondent no. 3, within a period of two weeks from today, the said respondent shall make available to the petitioner all adverse material that is being relied in

support of the impugned communication;

(ii) upon being thus confronted with the adverse material, the petitioner shall have a right to file a detailed objection to the action proposed by the respondent no. 3 within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no.3 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of two weeks therefrom.

For a period of two months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

All further recovery shall abide by the decision to be made by the respondent-corporation.

Order Date :- 6.1.2022/Md Faisal